

24SMCV00623 24SMCV00623

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24SMCV00623 Hearing Date: July 2, 2026 Dept: 205

Superior Court of
California

County of Los
Angeles – West District

Beverly Hills
Courthouse / Department 205

SEBASTIAN RICHARDS,

Plaintiff,

v.

ALINA LANDVER, et
al.,

Defendants.

Case No.: 24SMCV00623

Hearing Date: July 2,
2026

[TENTATIVE] ORDER
RE:

MOTION TO STAY
EXECUTION

BACKGROUND

This hearing is on Defendants Alina Landver and Landver Law Corporation, APC's application for a stay of enforcement of judgment pending appeal upon the posting of an undertaking. Plaintiff opposes.

Plaintiff filed this action on February 9, 2024, asserting a claim for quantum meruit for attorney fees. The matter was tried to the Court from July 7 through July 11, 2025. On July 11, 2025, the Court rendered a verdict awarding Plaintiff \$17,600 in damages. On October 13, 2025, the Court granted Plaintiff's motion to strike Defendants' memorandum of costs. On February 23, 2026, the Court entered final judgment for Plaintiff in the amount of \$26,642.76, consisting of \$17,600.00 in damages and \$9,042.76 in costs.

On April 21, 2026, Defendants filed a notice of appeal, which has been assigned Case No. B354325 in the Court of Appeal, Second Appellate District. On May 15, 2026, Plaintiff filed a writ of execution. On May 18, 2026, Defendants filed an undertaking, in the amount of \$39,694.14. On May 19, 2026, Plaintiff returned the writ of execution; no levy occurred.

Defendants now move for an order confirming that enforcement of the judgment is stayed pending appeal by operation of the undertaking, and restraining Plaintiff from any enforcement activity during the appeal. Plaintiff opposes on three grounds: (1) the request directed at the writ is moot because the writ has been returned; (2) the motion is unnecessary because a valid undertaking stays enforcement by operation of law without a court order; and (3) the undertaking is deficient because it is approximately \$270 less than one and one-half times the judgment.

LEGAL STANDARD

The perfecting of an appeal does not stay enforcement of a money judgment unless an undertaking is given. (Code Civ. Proc., § 917.1, subd. (a)(1).) Where the undertaking is given by an admitted surety insurer, it "shall be for ... one and one-half times the amount of the judgment." (Id., subd. (b).) Costs awarded by the trial court are

included in the amount of the judgment for purposes of calculating the undertaking. (Code Civ. Proc., § 917.1, subd. (d); *Quiles v. Parent* (2017) 10 Cal.App.5th 130.) A bond and an undertaking are interchangeable. (Code Civ. Proc., § 995.210, subd. (a).) A bond is effective without court approval unless the statute providing for it requires approval, and section 917.1 imposes no such requirement. (Code Civ. Proc., §§ 995.410, subd. (a), 995.420, subd. (a).) The admitted-surety status of the surety bears on the required amount and on acceptance of the bond without further acknowledgment (Code Civ. Proc., §§ 917.1, subd. (b), 995.630), not on the approval question. When a proper undertaking is filed, the stay arises by operation of law. (*California Commerce Bank v. Superior Court* (1992) 8 Cal.App.4th 582.) The amount requirement is “rigidly formulaic.” (*Leung v. Verdugo Hills Hospital* (2008) 168 Cal.App.4th 205, 212.)

Effectiveness is not unqualified, however. Section 995.420 provides that “[i]f an objection is made to a bond before the time provided, the bond becomes effective when the court makes an order determining the sufficiency of the bond.” (Code Civ. Proc., § 995.420.) The procedure for challenging sufficiency, and the consequence of an insufficient bond, are governed by sections 995.920, 995.930, and 996.010. A determination that a bond is insufficient in amount does not void the bond or forfeit the underlying right; rather, “[u]pon the determination the court shall order that a sufficient new, additional, or supplemental bond be given within a reasonable time not less than five days,” and only “[i]f a sufficient bond is not given within the time required” do “all rights obtained by giving the original bond” cease. (Code Civ. Proc., § 996.010, subds. (c), (d).)

DISCUSSION

A. The Return of the Writ

Moots Only the Relief Directed at That Writ.

Plaintiff first

argues that the motion is moot because the writ of execution was returned on May 19, 2026, and no levy occurred. The Court agrees in part. A claim is moot when the court can no longer grant effective relief. To the extent Defendants seek an order recalling, quashing, or suspending that particular writ, no effective relief remains available as there is no operative writ before the Court.

However, the

return of the writ does not reach the question on which the motion principally turns: whether the undertaking on file is sufficient to effect a stay. The undertaking presently on file is in the amount of \$39,694.14, which is \$270 less than one and one-half times the judgment, and Plaintiff presently disputes that the undertaking satisfies Code of Civil Procedure section 917.1. The Court can grant effective relief on that live disagreement, namely, a determination of the bond's sufficiency and, if warranted, an order to cure under section 996.010, subdivision (c). Because effective relief remains available as to the sufficiency of the undertaking, the matter is justiciable, and the Court proceeds to the merits of the undertaking.

B. The Parties' Dispute Over the Stay Is Properly Before the Court.

Plaintiff next

argues that the motion is unnecessary because, if the undertaking is valid, the stay exists by operation of law and no order is required. Plaintiff is correct as a general matter: a bond is effective without court approval unless the statute providing for it requires approval, and section 917.1 imposes no such requirement. But that principle presupposes a sufficient undertaking, and the sufficiency of the undertaking is precisely what is contested. Having declined to concede that the undertaking satisfies section 917.1, Plaintiff cannot at the same time maintain that there is nothing for the Court to decide.

Moreover, the

Court's authority to determine the sufficiency of a bond does not depend on the form or timing of any objection by Plaintiff. A court may determine that a bond is insufficient in amount "upon the court's own motion." (Code Civ. Proc., § 996.010, subd. (b).) The Court exercises that authority here.

C. The Undertaking Is \$270

Short of the Statutory Amount, but the Defect Is Curable.

The substance of

the dispute is the amount of the undertaking. One and one-half times the judgment is $\$26,642.76 \times 1.5 = \$39,964.14$. The bond filed by Defendants is in the amount of \$39,694.14. The bond is therefore \$270.00 less than the amount required by section 917.1, subdivision (b). The shortfall appears on the face

of Defendants' own moving papers, which correctly state the required figure as \$39,964.14 while reciting a bond amount of \$39,694.14, the result of a transposition of digits.

Because the amount requirement is "rigidly formulaic" (*Leung v. Verdugo Hills Hospital* (2008) 168 Cal.App.4th 205, 212), the Court cannot treat a bond that is less than one and one-half times the judgment as satisfying the statute, and it declines Defendants' invitation to deem the present bond sufficient on a "de minimis" theory. As filed, the bond does not perfect a stay by operation of law.

That conclusion does not warrant denial of the motion or forfeiture of Defendants' right to a stay. The remedy for an undertaking that is insufficient in amount is correction, not forfeiture. Having determined the undertaking insufficient, the Court "shall order that a sufficient new, additional, or supplemental bond be given within a reasonable time not less than five days," and only an uncured defect causes the rights obtained by the bond to cease. (Code Civ. Proc., § 996.010, subds. (c), (d).) Defendants have, in the alternative, requested leave to file a corrected or supplemental undertaking. The Court grants that relief. Defendants shall file a corrected or supplemental undertaking in the amount of \$39,964.14 within the time set forth below. Upon the timely filing of a conforming undertaking, enforcement of the judgment is stayed by operation of law pending the appeal.

D. Defendants
Are Not Entitled to a Freestanding Injunction Beyond the Statutory Stay.

Finally,
Defendants ask the Court to restrain and enjoin Plaintiff and all persons acting on his behalf from any enforcement activity during the appeal. To the extent this seeks relief beyond the stay that section 917.1 itself provides, it is unnecessary and unsupported by authority. A perfected statutory stay already bars enforcement of the judgment during the pendency of the appeal; no separate injunction is required to give it effect, and Defendants cite no authority authorizing one. The Court therefore declines to issue a freestanding injunction and instead confirms that, upon Defendants' cure of the undertaking, enforcement of the judgment is stayed by operation of law pending the appeal.

CONCLUSION

Based on the foregoing, the Court

GRANTS IN PART and DENIES IN PART Defendants' motion, as follows:

1.

To the extent the motion seeks to recall, quash, or restrain the writ of execution returned on May 19, 2026, it is DENIED as moot.

2.

The Court determines, on its own motion (Code Civ. Proc., § 996.010, subd. (b)), that the undertaking on file (SureTec Bond No. 3542730, in the amount of \$39,694.14) is insufficient under Code of Civil Procedure section 917.1, subdivision (b), in that it is \$270.00 less than one and one-half times the judgment of \$26,642.76. Pursuant to section 996.010, subdivision (c), Defendants are ordered to file and serve a corrected or supplemental undertaking, issued by an admitted surety insurer, in the amount of \$39,964.14, within ten (10) days of this order. Upon the timely filing of a conforming undertaking, enforcement of the judgment entered February 23, 2026 is stayed by operation of law pending final determination of the appeal in Case No. B354325. If a conforming undertaking is not timely filed, no stay arises from the bond on file, and all rights obtained by giving the bond on file cease. (Code Civ. Proc., § 996.010, subd. (d).)

3.

To the extent the motion seeks injunctive relief beyond the stay provided by Code of Civil Procedure section 917.1, the request is DENIED as unnecessary.

IT IS SO ORDERED.

DATED: July 2, 2026 _____

Edward
B. Moreton, Jr.

Judge
of the Superior Court